

UNITED STATES PATENT AND TRADEMARK OFFICE

BEFORE THE PATENT TRIAL AND APPEAL BOARD

DR. REDDY'S LABORATORIES, INC.,
Petitioner,

v.

GENENTECH, INC., HOFFMAN-LA ROCHE AG, and ABBVIE INC.,
Patent Owner

PGR2022-00023
Patent 10,993,942 B2

Before JEFFREY N. FREDMAN, ZHENYU YANG, and
ROBERT A. POLLOCK, *Administrative Patent Judges*.

FREDMAN, *Administrative Patent Judge*.

JUDGMENT
Granting Petitioner's Request for Rehearing of
Final Written Decision of Post Grant Review
37 C.F.R. § 42.71(d)

I. INTRODUCTION

A. Background and Summary

Dr. Reddy's Laboratories, Inc. ("Petitioner") filed a Petition (Paper 2, "Pet.") requesting post-grant review of claims 1–3, 5, 6, 14, 25–27, and 30 (the "challenged claims") of U.S. Patent No. 10,993,942 B2 (Ex. 1001, "the '942 patent"). Genentech, Inc., Hoffman-La Roche AG, and Abbvie Inc. ("Patent Owner") filed a Preliminary Response. Paper 6 ("Prelim. Resp."). We determined, based on the information presented in the Petition and Preliminary Response, that the '942 patent was eligible for post-grant review, and that at least some of the challenged claims were more likely than not unpatentable at least based on Petitioner's challenge under 35 U.S.C. § 112 for a lack of written description support. Paper 8 ("Institution Decision" or "Inst. Dec."). Pursuant to 35 U.S.C. § 324, the Board instituted trial on July 25, 2022, of all challenged claims on the written description ground. *Id.*

Following institution, Patent Owner filed a Response to the Petition (Paper 24, "PO Resp."), Petitioner filed a Reply to Patent Owner's Response (Paper 33, "Reply"), and Patent Owner filed a Sur-reply (Paper 37, "Sur-reply"). Both Petitioner and Patent Owner filed various Objections to Evidence (Papers 11, 12, 25, 35). An oral hearing was held on April 18, 2023, and a transcript has been entered into the record (Paper 46, "Tr.").

We entered our Final Written Decision, in which we determined that Petitioner had shown by a preponderance of the evidence that claims 2, 3, 5, 14, 25–27, and 30 of the '942 patent are unpatentable but had not demonstrated by a preponderance of the evidence that claims 1 and 6 of the '942 patent are unpatentable. *See* Paper 47, 2. However, in Section II.G., the

summary table and order, the Final Written Decision stated that claim 25 was not determined to be unpatentable. *See* Paper 47, 44–45.

Patent Owner timely filed a Request for Rehearing in which it asks that we hold claim 25 unpatentable because claim 25 depends from claim 14, which we found lacked written description. Paper 48, 1–2 (“Request,” or “Req. Reh’g”).

For the reasons set forth below, Patent Owner’s rehearing request is *granted*.

II. ANALYSIS

37 C.F.R. § 42.71(d) sets forth, in relevant part that:

A party dissatisfied with a decision may file a single request for rehearing without prior authorization from the Board. The burden of showing a decision should be modified lies with the party challenging the decision. The request must specifically identify all matters the party believes the Board misapprehended or overlooked, and the place where each matter was previously addressed in a motion, an opposition, or a reply.

See also Req. Reh’g 1 (quoting, in part, 37 C.F.R. § 42.71(d))

In the Final Written Decision, we determined that claim 14 lacked descriptive support. We noted that

Claim 14, in particular, recites a GDC-0199 dosing regimen “compris[ing] a dose of 20 mg per day for one week, a dose of 50 mg per day for one week, a dose of 100 mg per day for one week, a dose of 200 mg of GDC-0199 per day for one week, and a dose of 400 mg per day.” Unlike for claim 1, such disclosure is not found in a single example, but results from picking and choosing three separate selections from column 24. “The written description requirement is not met when, as here, the specification provides at best disparate disclosures that an artisan might have been able to combine in order to make the claimed

invention.” *Flash-Control, LLC v. Intel Corp.*, 2021 WL 2944592 *4 (Fed. Cir. 2021) (*citing Ariad*, 598 F.3d at 1352.)

Dec. 39.

We separately addressed claims 6 and 25 in our decision and noted that these claims were not addressed in the Petition. *See* Dec. 43. We found, based on a preponderance of the evidence of record that the limitation recited in claim 6, which depends from claim 1, was supported by the Specification and complied with the written description requirement. *See* Dec. 39–44. We did not note, however, that claim 25 depends from claim 14, which was found to lack descriptive support.

We therefore agree with Petitioner that we overlooked the correct dependency of claim 25. Claim 25, as a claim dependent from claim 14, lacks written descriptive support because claim 25 fails to cure the absence of descriptive support for claim 14.

III. CONCLUSION

For the foregoing reasons, Petitioner has shown that the Decision overlooked the dependency of claim 25 on claim 14 and therefore incorrectly identified claim 25 as not shown unpatentable.

Accordingly, Petitioner’s Request for Rehearing is granted.

Outcome of the Decision on Rehearing:

Claim(s)	35 U.S.C. §	Reference(s)/Basis	Denied	Granted
25	112(a)	Written Description		25

Final Outcome of Final Written Decision after Rehearing:

Claim(s)	35 U.S.C. §	Reference(s)/Basis	Claim(s) Shown Unpatentable	Claim(s) Not shown Unpatentable
1, 2, 3, 5, 6, 14, 25, 26, 27, 30	112(a)	Written Description	2, 3, 5, 14, 25, 26, 27, 30	1, 6

IV. ORDER

In consideration of the foregoing, it is:

ORDERED that Patent Owner's Request for Rehearing Pursuant to 37 C.F.R. § 42.71(d) (Paper 48) is *granted*.

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